

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1946

By: Murdock of the Senate

and

Moore of the House

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9 An Act relating to alcoholic beverages; amending 37A
10 O.S. 2021, Section 2-103, as amended by Section 5,
11 Chapter 338, O.S.L. 2023 (37A O.S. Supp. 2025,
12 Section 2-103), which relates to distiller licenses;
13 increasing certain number of allowed noncontiguous
14 locations allowed for certain licensee; allowing
15 certain licensee to sell certain sample spirits at
16 certain public events; allowing certain spirits to be
17 sold in certain controlled area; establishing certain
18 area to be considered certain distillery premises;
19 updating statutory language; and providing an
20 effective date.

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23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. AMENDATORY 37A O.S. 2021, Section 2-103, as
amended by Section 5, Chapter 338, O.S.L. 2023 (37A O.S. Supp. 2025,
Section 2-103), is amended to read as follows:

Section 2-103. A. A distiller license shall authorize the
holder thereof:

1 1. To manufacture, bottle, package and store spirits on
2 licensed premises;

3 2. To sell spirits in this state to licensed wholesalers and
4 manufacturers only;

5 3. To sell spirits out of this state to qualified persons; to
6 purchase from licensed distillers and rectifiers in this state, and
7 import spirits from without this state for manufacturing purposes in
8 accordance with federal laws and regulations;

9 4. To serve free samples of spirits produced only by the
10 licensee to visitors twenty-one (21) years of age and older. For
11 purposes of this section, no visitor may sample more than a total of
12 three (3) fluid ounces of spirits per day. The distiller shall
13 restrict the distribution and consumption of spirits samples to an
14 area within the licensed premises designated by the distiller. A
15 current floor plan that includes the designated sampling area shall
16 be on file with the ~~ABLE~~ Alcoholic Beverage Laws Enforcement (ABLE)
17 Commission. No visitor under twenty-one (21) years of age shall be
18 permitted to enter the designated sampling area when samples are
19 being distributed and consumed. Samples of spirits served by a
20 distiller under this section shall not be considered a sale of
21 spirits within the meaning of Article XXVIII-A of the Oklahoma
22 Constitution or Section 1-103 of this title; provided, such samples
23 of spirits shall be considered removed or withdrawn from the
24 distillery for use or consumption within the meaning of Section 5-

1 110 of this title for excise tax determination and reporting
2 requirements;

3 5. To sell spirits produced by the licensee for either on-
4 premises or off-premises consumption to consumers on the licensed
5 distillery premises or in an area controlled by the licensee located
6 contiguous to the licensed distillery premises and at ~~one (1)~~
7 ~~location~~ two locations controlled by the licensee located in the
8 same ~~county~~ state as the licensed distillery premises but not
9 contiguous to the licensed distillery premises. Spirits offered for
10 sale by the Oklahoma licensed distiller will have been sold to and
11 shipped to an Oklahoma licensed wine and spirits wholesaler and then
12 made available for purchase by the Oklahoma licensed distiller for
13 sale; and

14 6. To sell spirits and sample spirits at public events such as
15 trade shows or festivals. Products offered for sale by the Oklahoma
16 licensed distiller will have been sold to and shipped to an Oklahoma
17 licensed wine and spirits wholesaler and then made available for
18 purchase by the Oklahoma licensed distiller. Spirits offered for
19 on-premises consumption shall be in an area controlled by the
20 distillery and such area shall be considered the distillery
21 premises.

22 B. Spirits sold pursuant to paragraphs 5 and 6 of subsection A
23 of this section shall not exceed fifteen thousand (15,000) gallons
24 per calendar year in combination.

1 C. Spirits sold pursuant to paragraphs 5 and 6 of subsection A
2 of this section shall be a final sale. Licensed distillers may
3 offer for sale ~~non-alcoholic~~ nonalcoholic substances which may be
4 added to spirits by the consumer after final sale. Substances used
5 for on-premises consumption shall be ~~non-alcoholic~~ nonalcoholic in
6 nature and shall not be considered part of the manufacturing
7 process.

8 SECTION 2. This act shall become effective November 1, 2026.

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10 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
11 OVERSIGHT, dated 04/16/2026 - DO PASS.
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